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CASE #	CASE NAME	HEARING NAME
CVRI2500460	MASON vs ANIL	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO

Tentative Ruling:

Evidentiary Objections

Plaintiff objects to the following evidence submitted by E N Logistics in opposition to the motion. **Objection No. 1.** Plaintiff objects to paragraph 6 of the Declaration of Benjamin L. Goldstein, in which counsel describes his post-motion review of the Rigbot website concerning Rigbot's data-recording and retention features. (Goldstein Decl. ¶ 6.) Plaintiff objects on the following grounds: lack of personal knowledge and foundation, improper opinion by counsel, hearsay, secondary evidence, speculation as to E N Logistics' actual Rigbot account and settings, and irrelevance. **SUSTAIN.**

Objection No. 2. Plaintiff objects to E N Logistics' assertions in the Opposition or Separate Statement that Rigbot stores route history for only 14 days and that the data Mr. Bajwa reviewed became unavailable 14 days after the accident. Plaintiff objects on the following grounds: no evidentiary support (argument of counsel is not evidence), lack of foundation and personal knowledge, hearsay, and speculation. **SUSTAIN.**

Objection No. 3. Plaintiff objects to E N Logistics' assertions in the Opposition that Rigbot does not record lane-level data and that counsel is unaware of any GPS product that tracks vehicles to the lane or centimeter. Plaintiff objects on the following grounds: lack of foundation and personal knowledge, improper opinion by counsel, hearsay, and irrelevance. **SUSTAIN.**

Objection No. 4. Plaintiff objects to E N Logistics' uncorroborated characterizations of Mr. Bajwa's deposition testimony in the Opposition regarding GPS/telematics data, for which E N Logistics submitted no excerpt of the deposition transcript. Plaintiff objects on the following grounds: hearsay, lack of foundation and no evidentiary support, secondary evidence, and argument of counsel is not evidence. **SUSTAIN.**

Objection No. 5. Plaintiff objects to E N Logistics' uncorroborated characterization of Mr. Bajwa's deposition testimony in the Opposition or Separate Statement that an inspection sheet is created only upon a positive finding of an item requiring repair. Plaintiff objects on the following grounds: hearsay, lack of foundation, secondary evidence, and argument of counsel is not evidence. **SUSTAIN.**

Objection No. 6. Plaintiff objects to every remaining statement in the Opposition or Separate Statement purporting to describe Mr. Bajwa's deposition

testimony without citation to, or a copy of, the transcript, including the assertion that Mr. Bajwa “appeared to testify” that the company possessed certain documents. Plaintiff objects on the following grounds: hearsay, lack of foundation, secondary evidence, and argument of counsel is not evidence. **SUSTAIN.**

Analysis

1. Legal Standard

Any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action if the matter is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (CCP § 2017.010.) The scope of discovery is construed liberally in favor of disclosure. (*Volkswagenwerk Aktiengesellschaft v. Sup. Ct.* (1981) 122 Cal.App.3d 326, 332.)

A party may move to compel further responses to requests for production where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (CCP § 2031.310(a).) The moving party must show good cause justifying the discovery sought by the demand. (CCP § 2031.310(b)(1).) This requires specific facts showing that the documents are relevant and that there is no adequate alternative source. (*Kirkland v. Sup. Ct.* (2002) 95 Cal.App.4th 92, 98.)

Once good cause is shown, the burden shifts to the responding party to justify its objections. (*Id.*) The objecting party has the burden of justifying the objections. (*Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220–21.)

2. Merits

Plaintiff moves to compel E N Logistics to provide further responses to RFP Nos. 80, 81, 90, 95, and 106. Each will be addressed in turn below.

a. RFP Nos. 80 and 81

RFP Nos. 80 and 81 seek the “Driver Qualification” and “Driver History Investigation” files for Mr. Anil, referencing 49 C.F.R. § 391.51 and 391.53, respectively.

E N Logistics’ further response to No. 80 states that it is withholding the Driver Qualification file maintained for Mr. Anil, including the documents described in section 391.51, in its entirety, and that no documents will be produced in further response to the request. As to No. 81, no further response was ever served.

Vagueness/Ambiguity. E N Logistics objected that both requests are vague, ambiguous, and overbroad as to scope. These objections lack merit. The requests identify the files by name and cite the specific federal regulations that define the documents each file must contain. The Federal Motor Carrier Safety Regulations

require motor carriers to maintain a driver qualification file containing specified documents, including the driver's application for employment, motor vehicle record, road test certificate or commercial driver's license, medical examiner's certificate, and annual review of driving record. (49 C.F.R. § 391.51(b).) Section 391.53 specifies the contents of the investigation history file. (49 C.F.R. § 391.53.) The requests are not vague.

Civil Code § 3295(c). E N Logistics argues that at the time of the requests, no punitive damages claim was alleged, and that Plaintiff's eleventh hour motion for leave to amend to add such a claim is itself an admission that the driver file is not discoverable pursuant to *Díaz* unless and until a punitive damages claim is pled. This argument conflates two distinct issues: (1) whether the driver qualification and investigation files are discoverable on grounds independent of punitive damages, and (2) whether Civ. Code § 3295(c) restricts discovery of these files.

Civ. Code § 3295(c) prohibits pretrial discovery of the evidence described in subdivision (a)(1) and (2), which includes evidence of a defendant's financial condition and evidence of profit motivation. The statute restricts pretrial discovery of financial condition, not discovery of records relevant to the merits of whether the defendant acted with the requisite malice, oppression, or fraud. The driver qualification and investigation files bear on the employer's advanced knowledge of the employee's unfitness and the employer's conscious disregard of the safety of others, which are elements of a punitive damages claim under Civ. Code § 3294(b), not on the employer's financial condition. Section 3295(c) does not bar discovery of these files.

Confidentiality/Privacy. E N Logistics objected that the requests violate the right to privacy under Article I, Section 1 of the California Constitution. A party asserting a privacy objection must establish: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) a threatened intrusion that is serious. (*Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 552.) Even where a privacy interest exists, it must be balanced against the requesting party's need for the information. (*Hill v. Nat'l Coll. Athletic Assn.* (1994) 7 Cal.4th 1, 37.) Courts should impose a protective order rather than denying discovery where possible. (*Williams, supra*, 3 Cal.5th at 557.)

The driver qualification and investigation files are federally mandated compliance records, not personal medical or financial records. Any expectation of privacy in such records is diminished. Moreover, the driver is a named defendant in this action. A party's expectation of privacy is substantially lower than a non-party's. (*Heller v. Norcal Mut. Ins.* (1994) 8 Cal.4th 30, 43.) Here, Plaintiff has offered to stipulate to a protective order limiting use of the produced documents to this litigation. A protective order adequately addresses any privacy concern, and the privacy objection does not justify complete withholding.

Relevance—*Díaz v. Carcamo*. E N Logistics' primary objection is that the requests seek information that is not relevant to the subject matter of the litigation or reasonably calculated to lead to admissible evidence, because Mr. Anil's employment with E N Logistics was within the course and scope at the time of the accident, as admitted, invoking *Díaz*.

In *Diaz*, the California Supreme Court held that where an employer admits an employee was acting within the course and scope of employment at the time of an accident, evidence of negligent hiring, supervision, retention, training, or entrustment is irrelevant and inadmissible because the employer is vicariously liable for the employee's conduct regardless of whether the employer was negligent in hiring or supervising the employee. (*Diaz, supra*, 51 Cal.4th at 1157–58.) The Court reasoned that such evidence is superfluous where vicarious liability is admitted. (*Id.* at 1160.)

E N Logistics argues that because *Diaz* bars admission of negligent hiring evidence at trial, the driver file is not only inadmissible but also undiscoverable. This argument misconstrues the scope of discovery. *Diaz* is a rule of trial admissibility, not discoverability. The discovery statutes permit discovery of any non-privileged matter relevant to the subject matter of the action if it is either admissible or reasonably calculated to lead to admissible evidence, and information within the scope of discovery need not itself be admissible to be discoverable. (CCP § 2017.010; *Volkswagenwerk, supra*, 122 Cal.App.3d at 331.)

Plaintiff identifies multiple independent grounds on which the driver qualification and investigation files are relevant or reasonably calculated to lead to admissible evidence:

- **Driver competence and manner of operation.** The files bear on Mr. Anil's training, experience, motor vehicle record, and prior employment safety history, which are matters relevant to his competence as a commercial driver and his operation of the tractor-trailer on the date of the collision, independent of any negligent hiring theory, and a potential source of habit or custom evidence under Evid. Code § 1105.
- **Impeachment.** The files are a proper subject of cross-examination as to Mr. Anil's credibility.
- **Absence of accident or mistake.** Defendants now attribute Mr. Anil's movement into Plaintiff's lane to an "unavoidable accident and mechanical failure"—an evasive reaction to another vehicle and a hood that unexpectedly flew up. Where a party attributes conduct to accident or mistake, evidence of other similar acts is admissible to prove absence of mistake. (Evid. Code § 1101(b).) The files may contain records of prior lane departures or similar unsafe operation incidents admissible to rebut that defense.
- **Negligence per se.** Violations of the Federal Motor Carrier Safety Regulations support breach of duty and negligence per se. (*Weaver v. Chavez* (2005) 133 Cal.App.4th 1350, 1356; *Amerigas Propane v. Landstar Ranger, Inc.* (2010) 184 Cal.App.4th 981, 996.) The files will show whether E N Logistics complied with those regulations, a question independent of any negligent hiring theory.

Diaz does not bar discovery on any of these grounds. Plaintiff has shown good cause and E N Logistics' objections lack merit. The motion is **GRANTED** as to RFP Nos. 80 and 81, subject to entry of a protective order to which Plaintiff has agreed to stipulate.

b. RFP No. 90

RFP No. 90 seeks all driver inspection reports for the tractor and trailer involved in the subject accident, for the day of the accident and the six months preceding it.

E N Logistics' further response states that, after a diligent search and reasonable inquiry concerning the date of the subject accident, it is unable to comply because no written driver inspection report was created for the tractor or trailer on October 15, 2024 (the day of the accident). It states that Mr. Anil performed a visual inspection before beginning the trip, did not identify any defect or deficiency, did not prepare an inspection sheet or other written inspection report, and did not photograph any defect or deficiency, and therefore, no responsive accident date driver inspection report has ever been in its possession, custody, or control.

Vagueness/Ambiguity. E N Logistics objected that the request is vague, ambiguous, and fails to describe the documents sought with reasonable particularity under CCP § 2031.030(c)(1). For the reasons discussed as to RFP Nos. 80 and 81, this objection lacks merit. The request identifies driver inspection reports for a specified vehicle during a defined time period, which satisfies section 2031.030(c)(1).

Overbreadth. E N Logistics objected that the request is overbroad, oppressive, and harassing, and not reasonably calculated to lead to admissible evidence regarding the proximate cause of the subject accident. Plaintiff has shown good cause for the six-month scope: the reports are needed for accident reconstruction experts to distinguish pre-existing tractor damage from collision damage, a disputed and causation central issue, given E N Logistics' expert's contention that right-side tractor damage proves contact by a white truck and Plaintiff's contrary position that no such contact occurred. And as discussed under RFP Nos. 80 and 81, because E N Logistics is a two-truck carrier that acquired the subject tractor in approximately May 2024, the six-month period covers essentially its entire ownership of the tractor and yields at most a handful of records. The objection lacks merit.

Incompleteness of Response. A representation of inability to comply must satisfy CCP § 2031.230, affirming a diligent search and reasonable inquiry, specifying whether the inability results from the item's never having existed, having been destroyed or lost, or never having been in the responding party's possession, and identifying any person known to have possession. E N Logistics' further response addresses only the accident date and is silent as to the six months preceding it. The response is incomplete.

Alleged Agreement to Narrow Scope. As an alternative to its objections, E N Logistics contends that no further response is required because the parties agreed during the June 12, 2026 telephone conference to narrow RFP No. 90 to the accident date, that defense counsel's June 25, 2026 email memorialized that agreement, and

that its logbook production is consistent with that narrowed scope. Plaintiff's counsel, however, denies any such agreement. (King Reply Decl. ¶ 4.) The June 25 email reflects only defense counsel's understanding of the call. It contains no express agreement by Plaintiff's counsel to narrow the temporal scope, and Plaintiff's counsel never confirmed it in writing. Absent clear evidence of such agreement, the request as written governs and RFP No. 90 remains directed to the accident date and the six months preceding it. The motion is **GRANTED** as to RFP No. 90.

c. RFP Nos. 95 and 106

RFP No. 95 seeks GPS or Qualcomm records for the vehicle Mr. Anil was driving from October 10 through October 17, 2024. **RFP No. 106** seeks GPS position history for the tractor on the date of the accident.

E N Logistics initially responded that no responsive documents existed or were in its possession. Its further responses now produce Electronic Driver's Daily Logs for October 10–17, 2024, and represent that no other GPS or Qualcomm records are known to exist.

Vagueness/Ambiguity. For the reasons discussed as to RFP Nos. 80 and 81, the vagueness and ambiguity objections lack merit. The requests identify GPS and telematics records for a specified vehicle during a narrow, defined period using terms widely understood in the transportation industry.

Evasiveness of Response. E N Logistics' responses equate GPS/telematics data with the driver's Electronic Daily Log, but the two are not the same record. The daily log shows duty status (on-duty, off-duty, driving, sleeper-berth) and, at most, the city and state associated with a status change. It does not show the tractor's continuous position, route, specific freeways and lanes traveled, or speed and movements approaching the collision, which GPS/telematics position data does. A representation that production is complete when responsive documents exist is evasive and treated as a failure to respond. (CCP § 2031.220.)

14-Day Auto-Deletion Theory. In opposition, E N Logistics contends, for the first time, that the Rigbot route history data became unavailable 14 days after the accident. The sole support is paragraph 6 of the Goldstein Declaration, reporting counsel's post-motion review of Rigbot's website. Plaintiff's evidentiary objections to that paragraph are sustained (see below), and without it no competent evidence supports the 14-day theory. In any event, the theory is inconsistent with Mr. Bajwa's sworn testimony on March 30, 2026, far beyond any alleged 14-day window, that he had located and retained one copy of the data. If the data was in fact auto-deleted, E N Logistics bore an independent duty to preserve relevant electronically stored information once litigation became reasonably foreseeable following a serious-injury collision, and offers no explanation of what preservation steps, if any, it took.

Good Cause. Plaintiff has shown good cause. The GPS/telematics position data is critical to central, expert-contested issues: the route Mr. Anil actually took (as Mr. Anil's and Mr. Bajwa's accounts conflict) and, in particular, how long Mr. Anil traveled in

the number 2 lane, which commercial trucks are restricted, before the collision. This data bears directly on liability and causation.

The motion is **GRANTED** as to RFP Nos. 95 and 106. E N Logistics shall serve verified further responses without objection, from a person with knowledge of E N Logistics' Rigbot account and data retention practices, that comply with CCP §§ 2031.220 and 2031.230, including, if any responsive data is no longer accessible, a statement of when and how it became unavailable and what preservation steps were taken following the collision, and shall produce all responsive GPS/telematics position data in its possession, custody, or control, including Rigbot route history data.

Ruling: SUSTAIN Plaintiff's Evidentiary Objections. **GRANT** Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set Two, Nos. 80, 81, 90, 95, and 106. **Defendant is to provide a further response and production within 10 days.**

6.

CASE #	CASE NAME	HEARING NAME
CVRI2501734	HOWARD-CO vs CITY OF JURUPA VALLEY	MOTION FOR AN ORDER THAT PLAINTIFF FILE AN UNDERTAKING TO SECURE AN AWARD OF COSTS & FEES

Tentative Ruling:

a. Waiver – Code of Civil Procedure section 995.240

The only issue that remains is whether the bond should be waived or reduced based upon Plaintiff's indigency or hardship.

The court may waive or significantly reduce the amount of an undertaking if the plaintiff establishes indigency because "access trumps comfort." (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 429.) This is so even if the defendant establishes grounds for an undertaking. (*Id.*) The trial court has the discretion to waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because: (1) the principal is indigent, and (2) unable to obtain sufficient sureties, whether personal or admitted surety insurers. (Code Civ. Proc., § 995.240.)

"[A] party formally seeking in forma pauperis status to be relieved of paying specified court fees and costs, which we believe could include a section 1030 undertaking as an additional court fee or cost...must complete a mandatory Judicial Council form (currently designated form FW-001) and provide the specified financial information¹. [Citations.] An applicant who is not receiving government benefits from

¹ Judicial Council Form FW-011, "Request to Waive Court Fees," requires an applicant to list gross monthly income, household income, all financial accounts, vehicles, personal property (jewelry, furniture,